

STATE OF NEW YORK

8102--A

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. GOUNARDES -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to device-level age assurance

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new article 45-B to read as follows:

ARTICLE 45-B DEVICE-LEVEL AGE ASSURANCE

Section 1540. Definitions.

1541. Obligations for covered manufacturers.

1542. Obligations for covered developers.

1543. Nondiscrimination.

1544. Data security.

1545. Rulemaking authority.

1546. Scope.

1547. Enforcement.

§ 1540. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1. "Age assurance" shall mean any method to reasonably determine the age category of a user, using methods that reasonably prevent against circumvention. Such method may include a method that meets the requirements of article forty-five of this chapter, or may be a method that is identified pursuant to new regulations promulgated by the attorney general consistent with section fifteen hundred forty-five of this article.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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2. "Age category" shall mean data that a user is (a) under the age of thirteen years; (b) at least thirteen but under sixteen years; (c) at least sixteen but under eighteen years; or (d) at least eighteen years.

3. "Application programming interface" or "API" shall mean a system that allows two or more software systems to communicate and exchange information, features, and functionality.

4. "Application store" shall mean a publicly available website, software application, or online service that distributes third party platforms' software applications to an internet-enabled device.

5. "Covered developer" shall mean a person who owns or controls a website, online service, online application, mobile application, or portion thereof that is accessed by a user in the state of New York.

6. "Covered manufacturer" shall mean a manufacturer of an internet-enabled device, an operating system provider, or an application store.

7. "Covered minor" shall mean a user of an internet-enabled device who a covered manufacturer has determined via one or more commercially reasonable age assurance methods to be under the age of eighteen.

8. "Internet-enabled device" shall mean and include any desktop, laptop, smartphone, tablet, or other device capable of connecting to the internet and enabling the user to access content on the internet, including a social media platform.

9. "Operating system" shall mean the system software that manages the hardware of an internet-enabled device and allows programs and applications to run on such device.

10. "Operating system provider" shall mean any person, partnership, association, firm, business, or other legal entity, or any member thereof, who develops, distributes, and/or maintains an internet-enabled device's operating system, including but not limited to the design, programming, or supply of operating systems for internet-enabled devices.

11. "Social media platform" shall have the same meaning as in subdivision five of section eleven hundred of this chapter.

§ 1541. Obligations for covered manufacturers. 1. Upon activation of an internet-enabled device after the effective date of this article, a covered manufacturer shall conduct age assurance to determine a user's age category at the point of such activation. For devices that were activated prior to the effective date of this article, however, such covered manufacturer shall conduct the age assurance described herein on or before such effective date.

2. A covered manufacturer shall provide a covered developer with a digital signal indicating the age category of a user via a real-time application programming interface (API) upon receiving a request for such signal from such developer.

3. A covered manufacturer shall ensure that, for any internet-enabled devices sold after the effective date of this article, the requirements of this section are included in any operating system and application store updates by default after such effective date.

§ 1542. Obligations for covered developers. 1. All covered developers shall request an age category signal for a user from a covered manufacturer when such user downloads and launches such developer's website, service, or application.

2. If the signal indicates that a user is a covered minor, then such covered developer shall treat such signal as an authoritative indicator of such user's age for the purposes of compliance with any applicable law and the covered developer shall be deemed to have actual knowledge that a user is a covered minor across all platforms and points of access

1 of the website, service, or application; provided, however, that a
2 covered developer shall not willfully disregard clear and convincing
3 information otherwise available to the developer that indicates a user's
4 age is different than that indicated by the age category signal provided
5 by a covered manufacturer.

6 § 1543. Nondiscrimination. 1. A covered manufacturer shall impose at
7 least the same restrictions and obligations on its own websites, appli-
8 cations, and online services as it imposes on the websites, applica-
9 tions, and online services of third parties.

10 2. A covered manufacturer shall not withhold, degrade, lower the qual-
11 ity, or increase the price of any product, service, or feature to a user
12 due to the provisions of this article, other than as necessary for
13 compliance with the provisions of this article.

14 § 1544. Data security. 1. A covered manufacturer or covered developer
15 shall delete all information collected for the purposes of this article
16 after such purpose has been achieved, except where necessary for compli-
17 ance with applicable provisions of law or regulation.

18 2. All digital signals transmitted pursuant to sections fifteen
19 hundred forty-one and fifteen hundred forty-two of this article shall be
20 encrypted to ensure data integrity and security.

21 § 1545. Rulemaking authority. The attorney general may promulgate such
22 rules and regulations as are necessary to effectuate and enforce the
23 provisions of this article.

24 § 1546. Scope. This article shall apply to conduct that occurs in
25 whole or in part in New York. For purposes of this article, conduct
26 takes place wholly outside of New York when an internet-enabled device,
27 an operating system provider, or an application store is accessed by a
28 user who is physically located outside of New York.

29 § 1547. Enforcement. 1. Whenever it appears to the attorney general,
30 either upon complaint or otherwise, that any person, within or outside
31 the state, has engaged in or is about to engage in any of the acts or
32 practices stated to be unlawful in this article, the attorney general
33 may bring an action or special proceeding in the name and on behalf of
34 the people of the state of New York to enjoin any violation of this
35 article, to obtain restitution of any moneys or property obtained
36 directly or indirectly by any such violation, to obtain disgorgement of
37 any profits or gains obtained directly or indirectly by any such
38 violation, including but not limited to the destruction of unlawfully
39 obtained data, to obtain damages caused directly or indirectly by any
40 such violation, to obtain civil penalties of up to ten thousand dollars
41 per violation, and to obtain any such other and further relief as the
42 court may deem proper, including preliminary relief.

43 2. Nothing in this article shall be construed as providing the basis
44 for, or be subject to, a private right of action to violations of this
45 article or under any other law.

46 3. The attorney general shall maintain a website to receive
47 complaints, information, or referrals from members of the public
48 concerning a covered manufacturer's alleged compliance or noncompliance
49 with the provisions of this article.

50 § 2. Subdivision 1 of section 899-ii of the general business law, as
51 added by chapter 121 of the laws of 2024, is amended to read as follows:

52 1. For the purposes of this article, an operator shall treat a user as
53 a covered user if the user's device communicates or signals that the
54 user is or shall be treated as a minor, including through a browser
55 plug-in or privacy setting, device setting, or other mechanism that
56 complies with regulations promulgated by the attorney general, including

1 but not limited to the digital signals created in article forty-five-B
2 of this chapter.

3 § 3. If any clause, sentence, paragraph, subdivision, section or part
4 of this act shall be adjudged by any court of competent jurisdiction to
5 be invalid, such judgment shall not affect, impair, or invalidate the
6 remainder thereof, but shall be confined in its operation to the clause,
7 sentence, paragraph, subdivision, section or part thereof directly
8 involved in the controversy in which such judgment shall have been
9 rendered. It is hereby declared to be the intent of the legislature that
10 this act would have been enacted even if such invalid provisions had not
11 been included herein.

12 § 4. This act shall take effect one year after it shall have become a
13 law. Effective immediately, the addition, amendment and/or repeal of any
14 rule or regulation necessary for the implementation of this act on its
15 effective date are authorized to be made and completed on or before such
16 effective date.